

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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EMMANUEL SOTO,

Plaintiff,

- against -

Index No.:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

THE CITY OF NEW YORK, POLICE OFFICER
ANTHONY RODRIGUEZ, DETECTIVE CRAWFORD,
POLICE OFFICERS "JOHN DOE" 1-4 OF THE 44TH
PRECINCT, SUPERVISORY OFFICERS "JOHN DOE" 5-
8, DETECTIVES "JOHN DOE" 9-12, individually and in
their official capacities, (the name "John Doe" being
fictitious, as the true name and number are presently
unknown),

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 15, 2019

Yours etc.

_____/s/_____
Christopher H. Fitzgerald

_____/s/_____
Guido Moreira
Attorneys for Plaintiff
EMMANUEL SOTO
233 Broadway, Suite 2348
New York, NY 10279
212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

DETECTIVE CRAWFORD
44th Precinct, New York City Police Department
2 East 169th Street
Bronx, NY 10452

POLICE OFFICER ANTHONY RODRIGUEZ
44th Precinct, New York City Police Department
2 East 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No.:

EMMANUEL SOTO,

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, POLICE OFFICER
ANTHONY RODRIGUEZ, DETECTIVE CRAWFORD,
POLICE OFFICERS "JOHN DOE" 1-4 OF THE 44TH
PRECINCT, SUPERVISORY OFFICERS "JOHN DOE" 5-
8, DETECTIVES "JOHN DOE" 9-12, individually and in
their official capacities, (the name "John Doe" being
fictitious, as the true name and number are presently
unknown),

Defendants.

-----X

Plaintiff, Emmanuel Soto, by and through his attorneys, THE LAW OFFICE OF
CHRISTOPHER H. FITZGERALD and THE LAW OFFICE OF GUIDO MOREIRA,
complaining of the Defendants, respectfully alleges, upon information and belief:

- 1) That at all times relevant herein, Defendant THE CITY OF NEW YORK was,
and still is, a municipal corporation.
- 2) That Defendant POLICE OFFICERS, SUPERVISORY OFFICERS, and
DETECTIVES (hereinafter referred to as "DEFENDANT OFFICERS"), including
OFFICER ANTHONY RODRIGUEZ (hereinafter referred to as "RODRIGUEZ"),
DETECTIVE CRAWFORD (hereinafter referred to as "CRAWFORD"), and the officers
presently listed as JOHN DOES 1-12, their true names being unknown to the Plaintiffs at
this time, were at all times herein mentioned police officers, employed by and acting
under the direction of THE CITY OF NEW YORK.

- 3) That Plaintiff, EMMANUEL SOTO, is and was at all times relevant to this action, a resident of the County of Bronx in the State of New York.
- 4) That the events described herein occurred principally in the county of Bronx, in the city of New York.
- 5) That between the hours of 4pm and midnight on September 18, 2015, Plaintiff EMMANUEL Soto was working at his usual place of employment, a bodega known as the 332 Store, located a 332 St. Anne Avenue in the Bronx.
- 6) That Plaintiff owned a 2005 Chrystler Town & Country minivan at the time. As far as he knew, it was parked around the corner from the store.
- 7) That while Plaintiff was at work, another individual borrowed the Plaintiff's car. By the time Plaintiff finished working, the car had been returned to the same parking place.
- 8) That according to the criminal complaint sworn to by Defendant RODRIGUEZ, RODRIGUEZ pulled over the Plaintiff's minivan on the evening of September 18, 2015. RODRIGUEZ alleged that after pulling the minivan over, he reached inside the vehicle to retrieve the driver's license and registration. RODRIGUEZ alleged that while his hand was reached into the window, that the vehicle sped off, striking him.
- 9) That RODRIGUEZ falsely alleged that the vehicle was driven by the Plaintiff.
- 10) That RODRIGUEZ had no factual basis to believe that Plaintiff was driving the vehicle.

- 11) That based on the vehicle's registration, which showed that it was owned by the Plaintiff, and on the perjured criminal complaint sworn to by RODRIGUEZ, Defendant DETECTIVES from the 44th Precinct issued "wanted" posters, which stated that Plaintiff was wanted for assaulting an officer with a vehicle.
- 12) That on or about October 3, 2015, a customer at the bodega where Plaintiff works brought Plaintiff a wanted poster and showed it to him.
- 13) That Plaintiff contacted a criminal defense lawyer, Lawrence Fisher, who contacted Defendant DETECTIVES at the 44th precinct on his behalf.
- 14) That Mr. Fisher made arrangements with Defendant DETECTIVES for Plaintiff to meet with them on October 6, 2015.
- 15) That prior to the arranged meeting, Defendant POLICE OFFICERS came to the Plaintiff's residence at 1995 Sedgwick Avenue in Bronx, New York on October 5, 2015.
- 16) That on the morning of October 5, 2015, Plaintiff arrived at his apartment at or around 9 am in order to take his daughter to school and his fiancée to work.
- 17) That as Plaintiff arrived at his apartment building, he saw three police officers in plain clothes go into the building and speak with the building superintendent. The officers were recognizable because their badges were displayed. Plaintiff remained in front of the building waiting for his daughter and fiancée. While Plaintiff was waiting, the superintendent came outside and told him that the officers had a picture of Plaintiff and a wanted poster. The Defendant POLICE OFFICERS were still inside the building. When Plaintiff was informed that the officers were looking for him, he approached the officers

to ask them what was going on. Plaintiff spoke to the officers at the doorway of the building and told them his name.

- 18) That upon hearing Plaintiff's name, the Defendant POLICE OFFICERS immediately arrested Plaintiff and placed him in handcuffs. Defendant POLICE OFFICERS did not inform Plaintiff of why he was being arrested at that time.
- 19) That Defendant POLICE OFFICERS took Plaintiff to the 44th Precinct. At the 44th Precinct, Plaintiff's fiancée called attorney Fisher to let him know that Plaintiff had been arrested. Attorney Fisher came to the 44th Precinct. Fisher brought a digital copy of the surveillance video of the 332 St. Anne Avenue grocery store from September 18, 2015 showing that Plaintiff was working at the store during his entire 4pm to midnight shift and that he could not have been driving his car when it was alleged to have struck Defendant RODRIGUEZ.
- 20) That Defendant DETECTIVES present at the 44th Precinct refused to view the exculpatory evidence provided by attorney Fisher.
- 21) That Plaintiff remained in a cell at the 44th Precinct for about six or seven hours. After being detained for several hours at the 44th Precinct, Plaintiff was transferred to Central Booking. Plaintiff remained in Central Booking until he was arraigned at about 10 am on October 6, 2015. Plaintiff was wrongfully detained for approximately 25 hours in total.
- 22) That Defendants provided false information to the District Attorney's office indicating that Plaintiff was the driver of the vehicle on September 18, 2015 and

concealing their knowledge of the exculpatory evidence that was offered by attorney Fisher. Based on the false information provided to the District Attorney's office, the Assistant District Attorney present at arraignment requested that bail be set at \$10,000. Attorney Fisher informed the court that he was in possession of evidence showing that Plaintiff was at work at the time. The court released Plaintiff on his own recognizance.

- 23) That Plaintiff had to return to court several times before the charges against him were dismissed with prejudice on November 16, 2016. Plaintiff had to expend approximately \$7,500 for his legal defense as a result of the false allegations of the Defendants. Plaintiff had to expend approximately \$300 for transportation to his various court appearances.
- 24) That it is well established, and recognized by the CITY's own official policies, that there is no probable cause to arrest the registered owner of a vehicle involved in a crime without specific evidence that such registered owner was driving at the time the offense was committed.
- 25) That notwithstanding its official policies, the CITY fails to properly train police officers, fails to discipline officers who make arrests without probable cause, who swear to false complains, and who intentionally disregard exculpatory evidence.
- 26) That Defendant RODRIGUEZ falsely alleged that probable cause existed to arrest Plaintiff.
- 27) That Defendant DETECTIVES were at all relevant times aware that there was insufficient evidence to constitute probable cause that Plaintiff had committed a crime.

- 28) That Defendant DETECTIVES knowingly and intentionally disregarded Plaintiff's exculpatory evidence so that it would not be known to the District Attorney prior to Plaintiff's arraignment.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C. §1983**

- 29) Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
- 30) Defendants, under color of state law subjected the Plaintiff to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and causing him extreme physical distress and discomfort, pain and suffering, psychological and emotional injury, costs and expenses, and other damages and injuries.
- 31) Defendants conducted an unreasonable seizure of the Plaintiff's person.
- 32) Defendants arrested Plaintiff without probable cause to believe that he had committed any wrongdoing.
- 33) Defendants knowingly violated Plaintiff's rights by arresting him under circumstances that do not constitute probable cause according to well established law and policy.
- 34) Defendants disregarded Plaintiff's exculpatory evidence in order to delay it from coming to light.

- 35) Defendants subjected Plaintiff to abuse of process.
- 36) Defendants deprived Plaintiff of liberty without due process of law.
- 37) Defendants violated the Plaintiff's right to equal protection, privileges and immunities under the laws.
- 38) As a direct, sole and proximate result of the defendants' actions, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and standing in his community.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER 42 U.S.C. §1983**

- 39) Plaintiff realleges and incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
- 40) Defendants initiated and continued a criminal action against the Plaintiff without probable cause.
- 41) Defendants commenced this criminal action out of malice.
- 42) The criminal action against Plaintiff terminated in Plaintiff's favor.
- 43) The arrest, confinement, and restraint of Plaintiff's liberty was not otherwise privileged.
- 44) Defendants disregarded exculpatory evidence in order to further their malicious prosecution of the Plaintiff.

- 45) As a direct, sole and proximate result of the defendants' actions, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and standing in his community.

**THIRD CAUSE OF ACTION:
VIOLATION OF THE RIGHT TO DUE PROCESS AND A FAIR TRIAL
UNDER 42 U.S.C. § 1983**

- 46) Plaintiff realleges and incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
- 47) The criminal complaint that resulted from the Defendant's arrest of Plaintiff was the product of fraud, perjury, the fabrication of evidence, and suppression of exculpatory evidence undertaken in bad faith.
- 48) As a direct, sole and proximate result of the defendants' actions, plaintiff was caused to sustain psychological trauma, humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life, and significant economic damages.

**FOURTH CAUSE OF ACTION
FAILURE TO INTERVENE UNDER
THE FOURTH AMENDMENT AND 42 U.S.C. § 1983**

- 49) Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

- 50) Members of the New York City Police Department have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the Police Department or other law enforcement agency falsely arresting a civilian.
- 51) Defendant Police Officers, Supervisory Officers, and Detectives, listed herein as JOHN DOE, were all aware of and complicit in the arrest of Plaintiffs without probable cause.
- 52) It was clear that the information known to the Defendants, at the time of the arrest of the Plaintiff, was insufficient to constitute probable cause for an arrest, yet all of the officers involved failed to take any action or make any effort to intervene, halt, or protect Plaintiff from being arrested without probable cause.
- 53) Defendant Police Officer's violation of Plaintiff's constitutional rights by failing to intervene in the clearly unconstitutional arrest resulted in the injuries and damages set forth above.

**FIFTH CAUSE OF ACTION
MUNICIPAL LIABILITY AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. § 1983**

- 54) Plaintiffs realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
- 55) All of the acts and omissions by the unnamed individual police officer defendants described above were carried out pursuant to overlapping policies and practices of the CITY OF NEW YORK which were in existence at the time of the conduct alleged herein

and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant CITY and its agency, the POLICE DEPARTMENT.

- 56) Defendant CITY and the POLICE DEPARTMENT, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.
- 57) The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the POLICE DEPARTMENT, all under the supervision of ranking officers of the POLICE DEPARTMENT.
- 58) The aforementioned customs, practices, procedures and rules of the COUNTY and the POLICE DEPARTMENT include, but are not limited to, the following unconstitutional practices:
- a. Failing to supervise, train, instruct and discipline police officers who violate established CITY policies and encouraging their misconduct;
 - b. Failure to turn over exculpatory evidence or to investigate sufficiently to uncover same;
 - c. Discouraging police officers from reporting the corrupt or unlawful acts of other police officers;
 - d. Retaliating against officers who report police misconduct;

e. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the POLICE DEPARTMENT.

59) Defendant CITY knew or should have known that the acts alleged herein would deprive the Plaintiffs of their rights, in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

60) Defendant CITY is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the officially recognized rules and regulations of the COUNTY and POLICE DEPARTMENT, and to require compliance with the Constitution and laws of the United States.

61) Despite knowledge of such unlawful *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the CITY and POLICE DEPARTMENT have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the CITY OF NEW YORK.

- 62) The aforementioned CITY policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned CITY policies, practices and/or customs, the individual Defendant Police Officers felt empowered to arrest Plaintiffs without probable cause and withhold exculpatory evidence even though such actions were contrary to official CITY policy.
- 63) Plaintiff's injuries were a direct and proximate result of the Defendant CITY and POLICE DEPARTMENT'S wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the Defendant CIYU and the POLICE DEPARTMENT to properly supervise, train and discipline their police officers.
- 64) Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of the Plaintiffs' constitutional rights.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
November 15, 2019

Yours, etc.

The Law Office of Christopher H. Fitzgerald

_____/s/_____
Christopher H. Fitzgerald

The Law Office of Guido Moreira

_____/s/_____
Guido Moreira

Attorneys for Plaintiff(s)
EMNANUEL SOTO
233 Broadway, Suite 2348
New York, NY 10013
212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **EMMANUEL SOTO**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
 November 15, 2019

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff